MUFUDZI WAKANAKA ANGLICAN CHURCH
versus
SHAILET MUPERI
and
OBERT MATAMBO
and
CITY OF HARARE

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE: 20 January & 13 February 2026

Opposed Application

S Mbauya, for the applicant
1st respondent in person
T Murinyame, for the 2nd respondent
No appearance for the 3rd respondent

DEMBURE J:

1. On 20 January 2026, following submissions from the parties, the court handed down an *ex tempore* judgment whereby it granted an order that:

> "1. The 1st and 2nd Respondents and all those claiming occupation through them shall vacate certain piece of land known as stand number 4080, Crowborough Township, Harare.
> 2. The 1st and 2nd Respondents shall demolish their illegal structures built on stand number 4080 Crowborough Township, Harare, within three (3) days of service of this order, failing which the Sheriff or his deputy, if need be, with the assistance of the Zimbabwe Republic Police are hereby authorised to demolish the illegal structures.
> 3. The 1st and 2nd Respondents shall pay the costs of suit jointly and severally, the one paying, the other to be absolved."

What follows are the full written reasons for the court's decision.

2. The applicant approached the court seeking the eviction of the first and second respondents from a piece of land called stand number 4080 Crowbrough Township, Harare *("the property or stand"*) and the other ancillary relief as stated above.

FACTUAL BACKGROUND

3. It is apparent from the record that on 11 August 2017, the applicant and the third respondent entered into a 30-year lease agreement terminating on 31 July 2047 with exclusive rights to occupy and develop the property in question. There is no dispute that the third respondent is the legal or registered owner of the property. It is, therefore, the allocating authority in respect of the said piece of land. That was not in dispute.

4. The applicant averred that the first and second respondents had been in unlawful occupation of the stand. It had commenced work on the construction of a durawall whose plan had been approved by Council. It further pleaded that the applicant is a church, and the respondents are interfering with the church's intended use of the land. The respondents erected illegal structures in violation of the applicant's rights under the lease agreement, thereby disrupting the applicant's entitlement to peaceful enjoyment of the property.

5. The applicant's case was, therefore, that the first and second respondents are illegal occupiers of the property. They have no right to be on the land and interfere with the applicant's exclusive rights to the land, which arise from the long-term lease agreement with the third respondent, the owner of the property.

6. This application was not opposed by the third respondent. The record shows that the third respondent was duly served with the application. It did not file any Notice of Opposition in terms of the rules of court and was, therefore, automatically barred.

7. The first and second respondents opposed this application. The first respondent contended that she was allocated a portion of stand number 3425, measuring 200 square meters, in 2016 by Space Housing Cooperative. She stated that the stand was an open space. There was no dispute that the alleged 'stand' was on the piece of land allocated to the applicant in terms of the 30-year lease agreement. She also contended that Space Housing Cooperative had undergone a regularisation process with the City of Harare, and she started residing at the stand she was allocated in August 2017. She argued that the third respondent could not have allocated the stand to the applicant.

8. In para 10 of her opposing affidavit, she admitted that they had approached the third respondent as individuals for the regularisation of their stands. She claimed that the Council confirmed that they were in the process of regularisation. I hasten to state that the first respondent did not place any single document before the court to substantiate her assertions that she was allocated the stand through a housing cooperative named Space Housing Cooperative, which also had lawful rights to do so from the City of Harare.

9. The second respondent raised a point *in limine* that the applicant had adopted a wrong procedure, as there were material disputes of fact incapable of resolution without *viva voce* evidence. This point was not motivated as there was no demonstration of which material facts are in dispute and could not be resolved on the papers before the court. The point was rightly abandoned at the hearing as it was also unsubstantiated and, therefore, devoid of any legal merit. I must state in passing that it is not enough for a party to simply say that there are material disputes of fact without showing any material facts which are disputed and traversed by the party to such an extent that the court cannot resolve the dispute without the aid of oral evidence. Thus, MAKARAU J (as she then was) in *Supa Plant Investments (Pvt) Ltd v Chidavaenzi* 2009 (2) ZLR 132 (H) at 136 F-G said:

> "It is my view that it is not the number of times a denial is made or the vehemence with which a denial is made that will create a conflict of fact such as was referred to by MCNALLY J (as he then was) in *Masukusa v National Foods Ltd and Another* 1983 (1) ZLR 232 (H) and in all the other cases that have followed. A material dispute of fact arises when material facts alleged by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence."

10. On the merits, the second respondent contended that he was allocated the stand, which he also said is stand number 3425, Crowborough Township, in December 2016. It also measures 200 square meters. He averred that he subsequently constructed his house thereon. He maintained that he is a lawful occupier and the structures on the ground are not illegal structures. He also said that he had already settled on the portion of the stand in March 2017 and that it was the applicant who sought to build structures on the land where his tent is located. He attached some letters he wrote to the council and the Ministry of Local Government. He further attached to his affidavit some draft proposed layout plans and alleged that there was a directive by the Council's Director of Housing

to the Director of Works that the planning department must look into the matter to ensure that their structures are preserved.

11. The second respondent further alleged that when he wrote to the Minister of Local Government, the Minister in turn gave a directive to the third respondent to rectify the issue. I must state that no documentation establishing these directives was placed before the court, nor was there any official position from the third respondent which supported the second respondent's assertions.

THE ISSUE FOR DETERMINATION

12. The question which must be determined is whether or not the applicant is entitled to an eviction order.

ORAL SUBMISSIONS FROM THE PARTIES

13. Ms *Mbauya*, for the applicant, submitted that the applicant is a holder of a valid 30-year lease agreement with the City of Harare. She argued that this was not disputed. The applicant has a better right of possession at the exclusion of the respondents. It was submitted by counsel that the respondents, in their papers, admitted that they are in occupation of the particular stand in question, and that they do not have any right to occupy the property. They both claimed to have been allocated the same stand, which is number 3425, measuring 200 square metres. They did not place any document establishing lawful occupation or that they were allocated the same stand either by Space Housing Cooperative or the City of Harare.

14. Counsel went on to argue that the documentation which was attached by the second respondent did not speak to the right of the respondents to occupy the property in question. The land, it was further submitted, is owned by the third respondent, and it did not file any response to oppose the application. In the circumstances and further by the admissions, it meant that the applicant is in lawful occupation and that the second respondent is encroaching on the particular stand. That should suffice for an order to be granted for their eviction. Counsel also submitted that there was a letter referred to under annexure E1 to the second respondent's opposing affidavit, but that letter does not

mention the second respondent or the respondents by name. The letter does mention some names, but not those of the respondents.

15. She also submitted that the second respondent had admitted that a fraudster housing cooperative duped him. Therefore, the court cannot rely on an illegality. Nothing was placed before the court to support that they are in lawful occupation of the property, and accordingly, they must be ejected from the premises. It was further argued that the first respondent was a self-actor who submitted, in line with what she had stated in her opposing affidavit. She confirmed that she still awaits the regularisation by Council of her occupation of the stand in question and that council officials at one stage came to the property and pegged the area, but their stand was left out. From those measures, they were excluded. The prayer was for the court to grant the order in terms of the draft order at p 23 of the record.

16. The first respondent, who was a self-actor, submitted that she was currently waiting for the regularisation process by the City Council. She further stated that there were some letters which were written to the Ministry of Local Government. When the council officers came to the site, they took some measurements of the place or the area, but their stand was excluded. When I queried whether, by saying that she was waiting for regularisation, she was admitting that she was in unlawful occupation of the land, she maintained that she was allocated the stand by the Space Housing Cooperative. She argued that when the Church came, they were already in occupation of the land in question.

17. She further submitted that they approached the City Council with their request that they needed land to occupy, and they are fully aware of their request. When I questioned whether she was allocated the same stand as the second respondent, she submitted that they occupy different stands. She argued that the stands are next to each other. She confirmed that what she referred to as number 3425 was not a stand number, but only a number which was allocated on the ground or the site by the cooperative. She also stated that they approached the City of Harare for regularisation and indicated that she had one of the letters she wrote to the City of Harare in her possession. However, that letter was

not placed before the court as evidence. She did not, in any case, attach any documentary evidence to establish any assertions she had made in her opposing affidavit.

18. Mr *Murinyame,* for the second respondent, submitted that he would abide by the papers filed of record and emphasised that the second respondent was not necessarily questioning the allocation of the stand to the applicant. He argued this was a matter of encroachment. He submitted that when the applicant tried to construct its durawall, that was when the conflict began. Counsel submitted that the second respondent was allocated this land by the Space Housing Cooperative. When the court queried that there was no document from the alleged cooperative or the Council confirming this allocation, he conceded that the cooperative was found to be a fraudster. The second respondent and other members then approached Harare City Council through annexures B1 and B2 to actually seek the help of the City Council to regularise their stay there. That was the reason why there was no allocation letter in sight.

19. Counsel also conceded that the second respondent was in unlawful occupation of the stand by seeking regularisation from Council. It was argued that the fact that a fraudster housing cooperative allocated them the stands was the reason why they had not been given any allocation papers by the City of Harare, because the area needed to be surveyed first. After it has been surveyed, they will be allocated stands so that they can be legal occupiers of the said stands. He argued that the regularisation process had begun, and that meetings had even been held between the applicant and the third respondent. The talks were still underway.

20. Mr *Murinyame* went on to submit that they attached annexures E1 to E6, as some of the communications done between the City of Harare and the Ministry of Local Government. He agreed that the document at p 45 was simply a draft proposed subdivision and not any communication from anyone. He admitted that from annexures E1 to E6, the City Council was the one which made direct communications with the Ministry and not the second respondent. Annexure E1, he accepted, did not specifically refer to the second respondent but claimed it refers to the space or area which is occupied by the second respondent and others. He further stated that there is a proposed site plan to harmonise all the buildings which is underway and is awaiting approval from the Ministry. Therefore,

he prayed that this be allowed to be done before the eviction of the second respondent. He finally submitted that they admit that the church or the applicant was lawfully in occupation of the particular stand and that the respondents are indeed encroaching on that stand.

THE LAW

21. The law is well-established that a registered lessee of Council land with exclusive rights to occupy and develop the land has the *locus standi* to seek the eviction of any illegal occupier or trespasser thereon. See also *Shuro* v *Chiuraise & Anor* SC 20/19. Although in that case the court was relating specifically to a lease-to-buy, the law expressed therein would equally apply in the given circumstances of this case. It is also trite that a person who holds an offer letter or a lease of a piece of land owned by the State has exclusive rights to occupy and develop the land and is legally entitled to seek the eviction of any illegal occupier. This legal position was affirmed in *McGregor v Saburi & Ors* HH 33/11, where CHIWESHE JP (as he then was) had this to say:

> "The holder of an offer letter has authority granted by the owner of the land, that is the State, to occupy and utilize the land in question. He has a right and a legitimate interest to access the property. That right is enforceable against any other person who may seek to deprive him of it or frustrate his enjoyment of the same. The holder of an offer letter is perfectly entitled to seek an eviction order against persons who may illegally be in occupation of such property. He may not however take the law into his own hands and act without a court order. The offer letter confers upon its holder the "*locus standi*" to approach the courts for appropriate relief, contrary to the applicant's assertions. In my view the right to evict illegal occupiers is not limited exclusively to the State or the responsible Minister as the applicant would have us believe; it extends to the beneficiaries as well." (*my emphasis*)

APPLICATION OF THE LAW

22. In my view, the legal position set out in the cases of *McGregor* and *Shuro* (*supra*) would equally apply to the holder of a 30 year-lease granted by Council. The lessee in this case has authority granted by the owner to occupy and utilise the land at the exclusion of any other person. It is apparent from the papers attached to the applicant's founding affidavit, in particular the lease agreement, that the applicant has exclusive rights to occupy and utilise the property in question. There is no doubt, therefore, that the exclusive rights to possess or occupy the stand flow from the terms of the lease issued by the third respondent in 2017 and extend until 2047.

23. The applicant's right to exclusive occupation and possession of the particular stand in question was not seriously challenged. There was no evidence to challenge the validity of that particular lease agreement. Its validity is unquestionable. Mr *Murinyame,* in fact, conceded that indeed the church was allocated the stand. The same allocation was not seriously challenged by the first respondent, who also admitted that she was waiting for regularisation of her occupation by the same council which has a valid, extant 30-year lease with the applicant. There is no doubt, therefore, that the applicant managed to establish that it has a right to exclusive occupation and possession of the particular stand in question, entitling it to seek the eviction of any trespasser of the said land or the first and second respondents. It was not in dispute that the property was occupied by the respondents. Mr *Murinyame* admitted to the second respondent encroaching on the stand allocated to the applicant.

24. The respondents themselves completely failed to establish any right of retention. They did not adduce any evidence to substantiate their assertions that they were allocated the stand by any person with the rights to do so or from the registered owner, being the third respondent. The first respondent placed nothing before me to show that she was allocated the stand by Space Housing Cooperative in 2016 or that she has any right in respect of the land from the owner, the City of Harare. No document whatsoever was produced. She alluded that she had a letter with her, but that letter remained in her hands, as alleged. It was not placed before me. It was, therefore, not evidence before the court. It is trite that where a party alleges or makes a positive averment by raising a special defence he or she has the *onus* to establish that defence. See *Book* v *Davidson* 1988 (1) ZLR 365 at 384, where DUMBUTSHENA CJ (as he then was) stated:

> "That that is the general principle running throughout our law can be seen from a number of judgments mentioned above by the learned Chief Justice. In *Mobil Oil Southern Africa (Pty) Ltd* v *Mechin* 1965 (2) SA 706 (AD) at 711E-G POTGIETER AJA, as he then was, said:
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> > 'The general principle governing the determination of the incidence of the *onus* is the one stated in the *Corpus Iuris semper necessitas probandi incumbit illi qui agit* (D 22.3.21). In other words, he who seeks a remedy must prove the grounds therefore. There is, however, also another rule, namely, *ei incumbit probatio qui dicit non qui negat* (D 22.3.2.) That is to say the party who alleges or, as it is

> sometimes stated, the party who makes the positive allegation, must prove (cf *Kriegler* v *Minitzer and Anor* 1949 (4) SA 821 (AD) at 828). Together with these two rules must be read the following principle, namely: *agere etiam is videtur, qui exceptione utitur nam reus in exceptione actor est* (D 44.1.1.)'
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> This principle is stated thus by DAVIS AJA in *Pillay* v *Krishna and Anor* 1946 AD 946 at 952:
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> 'Where the person against whom the claim is made is not content with a mere denial of that claim, but sets up a special defence, then he is regarded, quoad that defence, as being the claimant; for his defence to be upheld, he must satisfy the Court that he is entitled to succeed on it.'
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> See *Pillay* v *Krishna & Anor* 1946 AD 946 at 951-952." (*my emphasis*)

25. I fully associate myself with the remarks by UCHENA JA in *January v Maferefu* SC14/20, where he said:

> "The appellant failed to prove her defence of lawful occupation of the respondent's property and the alleged fraudulent purchase of the property from her late father.
> As was held in *Nyahondo v Hokonya & Ors* 1997 (2) ZLR (S) 457 at 459, it is trite that he who makes an affirmative assertion, whether plaintiff or respondent, bears the *onus* of proving the facts so asserted.
> In view of the appellant's failure to prove any defence to the respondent's claim, she and all those claiming occupation of the property through her should be evicted from the respondent's property." (my emphasis)

26. The law is also clear that bald and unsubstantiated allegations do not establish a party's purported or announced position. See *Dube v Murehwa & Anor* SC 68/21 and *Delta Beverages (Pvt) Ltd v Murandu* SC 38/15. The respondents could not establish their defence by simply making bald and unsubstantiated assertions. There was nothing before the court from the third respondent, the owner of the land, which defeated the clear rights of the applicant to the stand in question. The second respondent also did not produce any single document from the City of Harare, the allocating authority and owner of the property, to defeat the applicant's claim to the property. The applicant's extant lease was not challenged.

27. The second respondent failed to show that he has any legitimate right to occupy the property in question, either through a cooperative or the third respondent. Annexure E1 to his opposing affidavit could not assist him. That document bears no name of either the first or the second respondent. It does not constitute an offer letter, allocation letter or any document establishing a lawful right over the property by the second respondent. Mr *Murinyame* conceded that the second respondent was duped by a fraudster cooperative, Space Housing Cooperative and did not have any documents from Council to establish

his rights to the land. He admitted that the second respondent was still seeking regularisation of his stay on the land in question. In any case, there was no evidence of any regularisation that took place. I find him, therefore, to have been in unlawful occupation of the property.

28. This also equally applies to the first respondent, who admitted in para 10 of her opposing affidavit that she had approached the third respondent for the regularisation of the stand and alleged that the regularisation process was ongoing. That admission of regularisation, in my view, put the matter to rest. The only conclusion would be that her occupation of the property in the circumstances is unlawful. The process of regularisation under s 155(1) of the Urban Councils Act [*Chapter 29:15*] is a discretionary action of the Council to seek to legitimise any illegal encroachment on its land. A person can only become a lawful occupant under that process once the council have duly completed the regularisation process. In this case, it was alluded that the process is still ongoing. But surely it cannot be said that there is any process of regularisation that is still taking place for all these years from 2016 to 2025. In any event, that purported regularisation would be inconsistent with the allocation already made to the applicant of the land for 30 years.

29. The first and second respondents all confirmed before the court that they were seeking regularisation of their illegal occupation of the land in question. There is no dispute that there was an illegal encroachment on council land necessitating the regularisation under s 155 of the Act. Consequently, by that admission, their defences can only fail. They cannot be sustained. The law is well-established that the court cannot lend itself to an illegality. See TM *Supermarkets (Pvt) Ltd v Nkomo & Ors* SC 28/20.

30. It is trite that an illegal occupier has no right that a court of law can protect. Courts will not, therefore, assist an illegal occupier in maintaining the unlawful occupation. It is quite clear that the respondents are standing on sinking sand and that they have no legal rights that can be enforced at law. Their defences in that respect are utterly untenable. Thus, in *Mkuvisi Mukuvisi Tashinga Housing Cooperative v Musukuma & Ors* HH 478/15 MATHONSI J (as he then was) also had an opportunity to deal with whether the court can protect one who is in an unlawful occupation of land. The court was very emphatic by stating that:

> "The applicant in this matter, especially with the benefit of legal counsel, should know that it is standing on sinking sand, it having no legal right that it can possibly enforce at law. It invaded land belonging to the fourth respondent in Msasa Park, Harare, parcelled it out to land seekers and then approached the owner seeking to legitimise an illegal occupation of that land.
> It has now been favoured with a taste of its own medicine by the first, second and third respondents, whom the applicant claims invaded its offices, changed the locks and barred the applicant from there with the help of party youths…
> There can be no better way of demonstrating that the applicant has no right to protect in a court of law than to cite the very documents it relies upon in making this application…" (*my emphasis*)

31. Evidence before me is very clear that the first and second respondents are illegal occupiers of the stand allocated to the applicant. They have no right to be on the piece of land or lawful authority from the third respondent. Consequently, their structures, which they erected on the property, can only be illegal structures. They cannot be allowed to remain there and interfere with the exclusive right to utilise the land granted to the applicant by the third respondent. The lease agreement is impeachable, and it actually grants the church exclusive rights to also construct any structures on the land that exceed the value of US$100,000.00. See clause 8.1 of the lease agreement.

32. The applicant is clearly entitled to the relief sought. The respondents took the law into their own hands and are accordingly seeking the regularisation *post facto* their illegal occupation. They have no right to retain possession, which this court can protect. Their brazen, unlawful conduct is deplorable. That conduct warrants that I uphold the general rule that costs should follow the cause. I have also noted that the applicant sought costs on the ordinary scale. They must be granted.

33. Accordingly, the court granted this application with costs in terms of the draft order.

DEMBURE J: ……

Coglan, Welsh & Guest, applicant's legal practitioners
Pundu & Company, 2nd respondent's legal practitioners